

25PSCV01312 25PSCV01312

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-07-28

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CG%2C07%2F28%2F2026

Source SHA-256: d68db8fdf8ab5b0e17819ba7bff11fc0a6a4946910493f9760f380d403047a38

Case Number: 25PSCV01312 Hearing Date: July 28, 2026 Dept: G

Plaintiff Pete Mejia's Amended Motion for
Attorney's Fees for Time Actually Expended and Reasonably Incurred

Respondent:

Defendant General Motors LLC

TENTATIVE

RULING

Plaintiff

Pete Mejia's Amended Motion for Attorney's Fees for Time Actually Expended and Reasonably Incurred is GRANTED in a reduced amount.

The

court AWARDS Plaintiff Pete Mejia a total of \$12,788.36.

BACKGROUND

This

is a Song-Beverly action arising out of the lease of an allegedly defective motor vehicle. On October 6, 2022,

plaintiff Pete Mejia (Mejia) leased a truck manufactured by defendant General Motors LLC (GM). Defendant Chevrolet of Puente Hills allegedly failed to repair the truck.

On

April 14, 2025, Mejia filed the Complaint, alleging causes of (1) breach of express warranty in violation of the Song-Beverly Act, (2) breach of implied

warranty in violation of the Song-Beverly Act, (3) failure to maintain service and repair facilities in violation of the Song-Beverly Act, and (4) failure to service and repair in a workmanlike manner in violation of Civil Code section 1796.5.

On November 20, 2025, the parties informed the court that they settled the case. On January 20, 2026, the court granted Mejia's dismissal of the entire action and all parties.

On March 18, 2026, Mejia filed the original motion for attorney's fees. On May 13, 2026, GM filed the opposition, and on May 18, 2026, Mejia filed the reply. On May 26, 2026, the court issued a tentative ruling continuing the hearing on the motion to allow Mejia to provide a copy of the written settlement agreement. When Mejia failed to appear at the hearing, the court did not adopt its tentative ruling and instead denied the motion without prejudice.

On May 28, 2026, Mejia filed this amended motion for attorney's fees. (The court notes that the amended motion for attorney's fees is identical to the original motion for attorney's fees, except that Mejia now includes a copy of the written settlement agreement in the supporting documents, as the court requested. Since the amended motion is identical to the original motion, the court considers the opposition and reply from the original motion in its analysis of the amended motion.

The motion is set for hearing on July 28, 2026.

ANALYSIS

Mejia moves for an award of attorney's fees and costs in the amount of \$17,112.68. For the following reasons, the motion for attorney's fees is GRANTED in the reduced amount of \$11,666.68.

Legal
Standard

“If

the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).) “[T]he negotiation of a possible settlement

does not excuse the failure to proceed with due diligence in the filing of pleadings, absent some understanding that pleadings need not be filed while negotiations are in process.” (Turley

v. Turley (1967) 254 Cal.App.2d 169, 173.)

In the context of an award of attorneys' fees “the time expended by attorneys in obtaining a reasonable fee is justifiably included in the attorneys' fee application, and in the court's fee award.” (Serrano v. Unruh (1982) 32 Cal.3d 621, 631.) “[I]t is inappropriate and an abuse of a trial court's discretion to tie an attorney fee award to the amount of the prevailing buyer/plaintiff's damages or recovery in a Song-Beverly Act action.” (Hanna v. Mercedes-Benz USA, LLC (2019) 36 Cal.App.5th 493, 510.)

In

assessing attorney's fees under the Song-Beverly Act, a trial court must make an “initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended is not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (Robertson v. Fleetwood Travel Trailers of Cal., Inc. (2006) 144 Cal.App.4th 785, 817.)

“It

is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion.” (Melnyk v. Robledo (1976) 64 Cal.App.3d 618, 623.) The fee setting inquiry in California ordinarily “begins with the ‘lodestar’ [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly

rate.” (Graciano v. Robinson Ford

Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) “The reasonable hourly rate is that prevailing in the community for similar work.”

(Margolin v. Regional Planning Com. (1982) 134 Cal.App.3d 999,

1004.) “Under the lodestar method, a

party who qualifies for a fee should recover for all hours reasonably spent

unless special circumstances would render an award unjust.” (Vo v. Las Virgenes Municipal Water Dist.

(2000) 79 Cal.App.4th 440, 446.)

“[A]

computation of time spent on a case and the reasonable value of that time is

fundamental to a determination of an appropriate attorneys’ fee award.” (Margolin v. Regional Planning Com., supra,

134 Cal.App.3d 999, 1004.) The lodestar

figure may then be adjusted, based on consideration of factors specific to the

case, in order to fix the fee at the fair market value for the legal services

provided. (See Serrano v. Priest

(1977) 20 Cal.3d 25, 49, discussing factors relevant to proper attorneys’ fees

award.) Such an approach anchors the

trial court’s analysis to an objective determination of the value of the

attorney’s services, ensuring that the amount awarded is not arbitrary. (Id. at 48, fn. 23.) The factors considered in determining the

modification of the lodestar include “(1) the novelty and difficulty of the

questions involved, (2) the skill displayed in presenting them, (3) the extent

to which the nature of the litigation precluded other employment by the

attorneys, [and] (4) the contingent nature of the fee award.” (Mountjoy v. Bank of America (2016)

245 Cal.App.4th 266, 271.) “[T]he burden

is on the party seeking attorney fees to prove that the fees it seeks are

reasonable.” (Gorman v. Tassajara

Development Corp. (2009) 178 Cal.App.4th 44, 98.) “[A]n award of attorney fees may be based on

counsel’s declarations, without production of detailed time records.” (Raining Data Corp. v. Barrenechea

(2009) 175 Cal.App.4th 1363, 1375.)

“[P]aralegal fees may be awarded as attorney’s fees if the trial court

deems it appropriate. . . .” (Roe v.

Halbig (2018) 29 Cal.App.5th 286, 312.)

Where

a party is challenging the reasonableness of attorney’s fees as excessive that

party must “attack the itemized billing[] with evidence that the fees claimed

were not appropriate, or obtain the declaration of an attorney with expertise

in the procedural and substantive law to demonstrate that the fees claimed were

unreasonable.” (Premier Medical Management Systems, Inc. v. Cal. Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 563–564.) “[I]t is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence and arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Id. at 564.) “General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Ibid.)

A

“court should defer to the winning lawyer’s professional judgment as to the tasks completed in an action because he won, and might not have, had he been more of a slacker.” (Moreno v. City of Sacramento (9th Cir. 2008) 534 F.3d 1106, 1111.) A losing party cannot litigate tenaciously then be heard to complain about the time spent or tasks performed by the prevailing party in response. (City of Riverside v. Rivera (1986) 477 U.S. 561, 580, fn. 11.) Where a defendant does not produce evidence contradicting the reasonableness of counsel’s hourly rates, the court will deem an attorney’s hourly rate as reasonable. (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 473.)

Discussion

As

the prevailing party, Mejia is entitled to attorney’s fees. To decide the award, the court considers the reasonableness of the claimed hours, the reasonableness of the rates charged, whether to apply a lodestar multiplier, and the amount of costs and expenses.

Reasonableness of the Claimed Hours

The

Song-Beverly Act provides for the recovery of “costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer.” (Civ. Code, § 1794, subd. (d).) A verified fee bill is “prima facie evidence the costs, expenses and services listed were necessarily incurred.” (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) However, counsel bears the burden to demonstrate the reasonableness of

charges. (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247.) Fees should be denied where the court finds the tasks unreasonable or unnecessary since “padding in the form of inefficient or duplicative efforts is not subject to compensation.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.)

Mejia's counsel claims 32.5 hours of legal work. (See 5/28/2026 Acosta Decl., ¶ 31; 5/28/2026 Acosta Decl., Exh. A, p. 6.) The verified fee bill is prima facie evidence of the legal services necessarily incurred. (See 5/28/2026 Acosta Decl., Exh. A; see also *Hadley*, supra, 167 Cal.App.3d at 682.) To determine the reasonableness of the claimed hours, the court considers the arguments from GM's opposition. The court categorizes the challenged billing entries with which GM takes issue: (1) excessive and inefficient litigation, (2) clerical work completed by attorneys, and (3) anticipated time. (See Opp., pp. 12–19.)

Excessive
and Inefficient Litigation

GM argues a reduction in the attorney's fee award is justified for “extensive non-compensable clerical work and routine communications” and “excessive and unreasonable” review of initial disclosures. (Opp., pp. 12, 16, capitalization changed.) The court agrees.

The court may reduce an attorney's fee award if “plaintiff's counsel failed to act efficiently.” (*Mikhaeilpoor*, supra, 48 Cal.App.5th at 256.) “In evaluating whether the attorney fee request is reasonable, the trial court should consider whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended.” (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38, cleaned up.) Additionally, the court does not award attorney's fees for work that is unnecessarily duplicative. (See Civ. Code, § 1794, subd. (d); see also *Premier Medical Management Systems, Inc.*, supra, 163 Cal.App.4th at 564.)

The court reviewed the specific entries GM challenged and found one that is

appropriately characterized as inefficient and duplicative; the other entries, such as those for client communications, the court finds were necessarily incurred in litigation. On July 22, 2025, Anthony Greco included two billing entries totaling 2.0 hours to review GM's initial disclosures, even though a paralegal had already completed a review of the same initial disclosures that same day. (See 5/28/2026 Acosta Decl., Exh. A, pp. 2–3.)

Thus,
the court reduces the award of attorney's fees for inefficient litigation by 2.0 hours (2.0 hours from Anthony Greco).

Clerical
Work Completed by Attorneys

GM
argues a reduction in the attorney's fee award is justified for "work that could and should have been performed by paralegals or support staff." (Opp., p. 14, capitalization changed.) The court disagrees.

On
one hand, a trial court may reduce attorney's fees for clerical work completed by an attorney. (See *Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187, finding that the trial court properly reduced attorney's fees where attorneys billed clerical work at partners' rates.) On the other hand, courts have also found that non-attorney work may be included in an award of attorney's fees. (See *City of Oakland v. McCullough* (1996) 46 Cal.App.4th 1, 7, finding that support services provided to attorneys may be included in an award of attorney's fees.) In either case, it is within the trial court's discretion to determine whether clerical work should be included in the award of attorney's fees. (Roe, *supra*, 29 Cal.App.5th at 312.)

Here,
the court reviewed the entries cited as legal assistant tasks but found that they were reasonably incurred in the prosecution of the action.

Thus,
the court declines to reduce the award of attorney's fees for legal assistant tasks.

Anticipated
Time

GM

argues a reduction in the attorney's fee award is justified for "preparing the instant motion" because "anticipated time should not be awarded." (Opp., p. 18, capitalization changed.)

The

court must base its award of attorney's fees on "actual time expended." (Civ. Code, § 1794, subd. (d).) The plain language of Section 1794,

subdivision (d) necessarily precludes an award based on speculative fees.

The

motion anticipates 5.5 hours in connection with reviewing the opposition, drafting the reply, and attending the hearing.

(See 5/28/2026 Acosta Decl., Exh. A, p. 6.) Anticipated fees are speculative and not recoverable as "actual time expended."

(Civ. Code, § 1794, subd. (d).)

Thus,

the court reduces the award of attorney's fees for anticipated time by 5.5 hours (5.5 hours from Christopher Urner).

Therefore,

the court finds that Mejia substantiated 25.0 of the 32.5 hours claimed by counsel in this litigation.

Reasonableness
of Counsel's Rates

The

trial court is the ultimate arbiter of what rates are reasonable. (Warren v. Kia Motors America, Inc.

(2018) 30 Cal.App.5th 24, 36, stating, "experienced trial judges are the best

judges of the value of professional services rendered in their courts.") To determine if an hourly rate is reasonable,

courts consider the rates of similar attorneys in the community as well as "the

experience, skill, and reputation of the attorney requesting fees." (Heritage Pacific Financial, LLC v. Monroy

(2013) 215 Cal.App.4th 972, 1009.)

Here,

Mejia’s counsel request hourly rates as outlined by this table:

Name

Admission Year

Rate

Anthony Greco

2014

\$595

Christopher Urner

2017

\$525

Jorge L. Acosta

2023

\$450

Evelyn Ghazarian

Law Clerk

\$250

Jack L. Ingram

Paralegal

\$150

Counsel's
declaration provides an overview of the experience and credentials for each

listed attorney and legal staff member.

(See 5/28/2026 Acosta Decl., ¶¶ 2–6, 9–12.) The court considered counsel's declaration, the United States Consumer Law Attorney Fee Survey Report, and the Laffey Matrix. (See 5/28/2026 Acosta Decl., ¶¶ 21–23.) Based on the court's review of this case compared to other Los Angeles-area counsel in similar Song-Beverly cases, the court finds that the rates charged by some attorneys are unreasonable.

Attorneys'

rates over \$500 for this type of case are excessive, so the court reduces the rates of Anthony Greco and Christopher Urner to \$500. Anthony Greco billed 15.8 hours and substantiated 13.8 hours at a rate of \$595, so the court reduces the award by \$2,501.00. Christopher Urner billed 7.8 hours and substantiated 2.3 hours at a rate of \$525, so the court reduces the award by \$2,945.00.

Therefore, adjusting counsel's rates for reasonableness, the appropriate award of attorney's fees is \$11,666.68 before considering any multiplier.

Lodestar
Multiplier

The factors that courts look at to determine if a multiplier is reasonable are:

“(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Ketchum, supra, 24 Cal.4th at 1132.)

“[T]he purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases.” (Id. at 1138.) When a case is not complicated, “the request for a multiplier [is] specious.” (Mikhaeilpoor, supra, 48 Cal.App.5th at 255.)

Here, Mejia does not request a lodestar multiplier.

Therefore,
the court does not elect to apply a lodestar multiplier to the award of
reasonable attorney's fees of \$11,666.68.

Costs
and Expenses

Mejia is entitled to all \$1,121.68 in claimed costs
and expenses. A prevailing plaintiff has
a right to recover all costs and expenses that were reasonably incurred in
prosecuting the case. (Civ. Code, §
1794, subd. (d).) Allowable costs must
be reasonably necessary to conduct the litigation and reasonable in
amount. (Code Civ. Proc., § 1033.5,
subds. (c)(2)–(c)(3).)

Mejia requests \$1,121.68 in costs and expenses in
the motion and the memorandum of costs. (See
5/28/2026 Mot., pp. 15–16; 5/28/2026 Memo. of Costs, p. 1.) Based
on the memorandum of costs and the expenses described therein, the court finds
that all claimed costs were reasonably incurred. (See 5/28/2026 Memo. of Costs.)

Therefore, Mejia is entitled to all \$1,121.68 in claimed
costs and expenses.

Accordingly, the motion for attorney's fees and costs
is GRANTED in the reduced
amount of \$12,788.36.68.

CONCLUSION

For
these reasons, the amended motion for reasonable attorney's fees and costs is GRANTED
in a reduced amount.

The
court AWARDS Plaintiff Pete Mejia a total of \$12,788.36.